

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3130

By: West (Kevin)

AS INTRODUCED

An Act relating to gender transition procedures; prohibiting state funds for use towards all gender transition procedures; declaring legal protection for parental rights; providing a severability clause; providing for judicial review; establishing venue; amending 59 O.S. 2021, Section 509, as amended by Section 2, Chapter 150, O.S.L. 2023 (59 O.S. Supp. 2025, Section 509), which relates to unprofessional conduct within the Oklahoma Allopathic Medical and Surgical Licensure and Supervision Act; modifying gender transition procedure misconduct; amending Section 3, Chapter 150, O.S.L. 2023 (59 O.S. Supp. 2025, Section 519.12), which relates to unprofessional conduct within the Physician Assistant Act; modifying gender transition procedure misconduct; amending 59 O.S. 2021, Section 567.8, as amended by Section 4, Chapter 150, O.S.L. 2023 (59 O.S. Supp. 2025, Section 567.8), which relates to the Oklahoma Nursing Practice Act; modifying gender transition procedure misconduct; amending 59 O.S. 2021, Section 637, as last amended by Section 14, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 637), which relates to the Oklahoma Osteopathic Medicine Act; modifying gender transition procedure misconduct; amending Section 1, Chapter 150, O.S.L. 2023 (63 O.S. Supp. 2025, Section 2607.1), which relates to health services for minors; clarifying definition; providing definition; including referrals and aiding and abetting; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2607.2 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. No state agency, subdivision, employee, contractor, or
5 public institution shall:

6 1. Provide, allocate, or reimburse any state funds for any
7 gender transition procedures;

8 2. Facilitate, refer, or encourage the provision of such
9 procedures; and

10 3. Contract with any entity that knowingly performs or promotes
11 such procedures.

12 B. Any violation of this section by a state employee shall
13 constitute grounds for immediate termination and forfeiture of
14 public employment benefits.

15 SECTION 2. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 2607.3 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. A parent or guardian's decision to withhold consent for
19 gender transition procedures or related social transitions shall
20 not, in itself, constitute abuse, neglect, or grounds for loss of
21 custody.

22 B. Any government agency or court that violates this provision
23 shall be subject to civil liability and injunction.
24

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2607.4 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. If any provision of this act or its application is found
5 invalid by a court, the remaining provisions shall remain in full
6 force and effect.

7 B. Any challenge to this act shall be adjudicated exclusively
8 in the courts of the State of Oklahoma and shall be governed by
9 strict scrutiny standards applicable to state sovereign authority
10 over public health and child welfare.

11 SECTION 4. AMENDATORY 59 O.S. 2021, Section 509, as
12 amended by Section 2, Chapter 150, O.S.L. 2023 (59 O.S. Supp. 2025,
13 Section 509), is amended to read as follows:

14 Section 509. The words "unprofessional conduct" as used in
15 Sections 481 through 518.1 of this title are hereby declared to
16 include, but shall not be limited to, the following:

- 17 1. Procuring, aiding or abetting a criminal operation;
- 18 2. The obtaining of any fee or offering to accept any fee,
19 present or other form of remuneration whatsoever, on the assurance
20 or promise that a manifestly incurable disease can or will be cured;
- 21 3. Willfully betraying a professional secret to the detriment
22 of the patient;
- 23 4. Habitual intemperance or the habitual use of habit-forming
24 drugs;

1 5. Conviction or confession of, or plea of guilty, nolo
2 contendere, no contest or Alford plea to a felony or any offense
3 involving moral turpitude;

4 6. All advertising of medical business in which statements are
5 made which are grossly untrue or improbable and calculated to
6 mislead the public;

7 7. Conviction or confession of, or plea of guilty, nolo
8 contendere, no contest or Alford plea to a crime involving violation
9 of:

10 a. the antinarcotic or prohibition laws and regulations

11 of the federal government,

12 b. the laws of this state,

13 c. State Commissioner of Health rules, or

14 d. a determination by a judge or jury;

15 8. Dishonorable or immoral conduct which is likely to deceive,
16 defraud, or harm the public;

17 9. The commission of any act which is a violation of the
18 criminal laws of any state when such act is connected with the
19 physician's practice of medicine. A complaint, indictment or
20 confession of a criminal violation shall not be necessary for the
21 enforcement of this provision. Proof of the commission of the act
22 while in the practice of medicine or under the guise of the practice
23 of medicine shall be unprofessional conduct;

1 10. Failure to keep complete and accurate records of purchase
2 and disposal of controlled drugs or of narcotic drugs;

3 11. The writing of false or fictitious prescriptions for any
4 drugs or narcotics declared by the laws of this state to be
5 controlled or narcotic drugs;

6 12. Prescribing or administering a drug or treatment without
7 sufficient examination and the establishment of a valid physician-
8 patient relationship and not prescribing in a safe, medically
9 accepted manner;

10 13. The violation, or attempted violation, direct or indirect,
11 of any of the provisions of the Oklahoma Allopathic Medical and
12 Surgical Licensure and Supervision Act, either as a principal,
13 accessory or accomplice;

14 14. Aiding or abetting, directly or indirectly, the practice of
15 medicine by any person not duly authorized under the laws of this
16 state;

17 15. The inability to practice medicine with reasonable skill
18 and safety to patients by reason of age, illness, drunkenness,
19 excessive use of drugs, narcotics, chemicals, or any other type of
20 material or as a result of any mental or physical condition. In
21 enforcing this section the State Board of Medical Licensure and
22 Supervision may, upon probable cause, request a physician to submit
23 to a mental or physical examination by physicians designated by it.
24 If the physician refuses to submit to the examination, the Board

1 shall issue an order requiring the physician to show cause why the
2 physician will not submit to the examination and shall schedule a
3 hearing on the order within thirty (30) days after notice is served
4 on the physician, exclusive of the day of service. The physician
5 shall be notified by either personal service or by certified mail
6 with return receipt requested. At the hearing, the physician and
7 the physician's attorney are entitled to present any testimony and
8 other evidence to show why the physician should not be required to
9 submit to the examination. After a complete hearing, the Board
10 shall issue an order either requiring the physician to submit to the
11 examination or withdrawing the request for examination. The medical
12 license of a physician ordered to submit for examination may be
13 suspended until the results of the examination are received and
14 reviewed by the Board;

15 16. a. Prescribing, dispensing or administering of controlled
16 substances or narcotic drugs in excess of the amount
17 considered good medical practice,

18 b. Prescribing, dispensing or administering controlled
19 substances or narcotic drugs without medical need in
20 accordance with pertinent licensing board standards,
21 or

22 c. Prescribing, dispensing or administering opioid drugs
23 in excess of the maximum limits authorized in Section
24 2-309I of Title 63 of the Oklahoma Statutes;

1 17. Engaging in physical conduct with a patient which is sexual
2 in nature, or in any verbal behavior which is seductive or sexually
3 demeaning to a patient;

4 18. Failure to maintain an office record for each patient which
5 accurately reflects the evaluation, treatment, and medical necessity
6 of treatment of the patient;

7 19. Failure to provide necessary ongoing medical treatment when
8 a doctor-patient relationship has been established, which
9 relationship can be severed by either party providing a reasonable
10 period of time is granted;

11 20. Performance of an abortion as defined by Section 1-730 of
12 Title 63 of the Oklahoma Statutes, except for an abortion necessary
13 to prevent the death of the mother or to prevent substantial or
14 irreversible physical impairment of the mother that substantially
15 increases the risk of death. The performance of an abortion on the
16 basis of the mental or emotional health of the mother shall be a
17 violation of this paragraph, notwithstanding a claim or diagnosis
18 that the woman may engage in conduct which she intends to result in
19 her death. The Board shall impose a penalty as provided in Section
20 509.1 of this title on a licensee who violates this paragraph. The
21 penalty shall include, but not be limited to, suspension of the
22 license for a period not less than one (1) year;

23 21. Failure to provide a proper and safe medical facility
24 setting and qualified assistive personnel for a recognized medical

1 act, including but not limited to an initial in-person patient
2 examination, office surgery, diagnostic service or any other medical
3 procedure or treatment. Adequate medical records to support
4 diagnosis, procedure, treatment or prescribed medications must be
5 produced and maintained; or

6 22. Knowingly ~~providing~~ performing, attempting to perform, or
7 referring a child for a gender transition ~~procedures~~ procedure as
8 defined in Section ~~±~~ 2607.1 of ~~this act~~ Title 63 of the Oklahoma
9 Statutes to a child.

10 SECTION 5. AMENDATORY Section 3, Chapter 150, O.S.L.
11 2023 (59 O.S. Supp. 2025, Section 519.12), is amended to read as
12 follows:

13 Section 519.12. Unprofessional conduct by a physician assistant
14 shall include, but not be limited to, knowingly ~~providing~~
15 performing, attempting to perform, or referring a child for a gender
16 transition ~~procedures~~ procedure as defined in Section ~~±~~ 2607.1 of
17 ~~this act~~ Title 63 of the Oklahoma Statutes to a child.

18 SECTION 6. AMENDATORY 59 O.S. 2021, Section 567.8, as
19 amended by Section 4, Chapter 150, O.S.L. 2023 (59 O.S. Supp. 2025,
20 Section 567.8), is amended to read as follows:

21 Section 567.8. A. The Oklahoma Board of Nursing shall have the
22 power to take any or all of the following actions:

23 1. To deny, revoke or suspend any:
24

- a. licensure to practice as a Licensed Practical Nurse, single-state or multistate,
- b. licensure to practice as a Registered Nurse, single-state or multistate,
- c. multistate privilege to practice in Oklahoma,
- d. licensure to practice as an Advanced Practice Registered Nurse,
- e. certification to practice as an Advanced Unlicensed Assistant,
- f. authorization for prescriptive authority, or
- g. authority to order, select, obtain and administer drugs;

2. To assess administrative penalties; and

3. To otherwise discipline applicants, licensees or Advanced Unlicensed Assistants.

B. The Board shall impose a disciplinary action against the person pursuant to the provisions of subsection A of this section upon proof that the person:

1. Is guilty of deceit or material misrepresentation in procuring or attempting to procure:

- a. a license to practice registered nursing, licensed practical nursing, or a license to practice advanced practice registered nursing with or without either

1 prescriptive authority recognition or authorization to
2 order, select, obtain and administer drugs, or

3 b. certification as an Advanced Unlicensed Assistant;

4 2. Is guilty of a felony, or any offense substantially related
5 to the qualifications, functions or duties of any licensee or
6 Advanced Unlicensed Assistant, or any offense an essential element
7 of which is fraud, dishonesty, or an act of violence, whether or not
8 sentence is imposed, or any conduct resulting in the revocation of a
9 deferred or suspended sentence or probation imposed pursuant to such
10 conviction. For the purposes of this paragraph, "substantially
11 related" means the nature of criminal conduct for which the person
12 was convicted has a direct bearing on the fitness or ability to
13 perform one or more of the duties or responsibilities necessarily
14 related to the occupation;

15 3. Fails to adequately care for patients or to conform to the
16 minimum standards of acceptable nursing or Advanced Unlicensed
17 Assistant practice that, in the opinion of the Board, unnecessarily
18 exposes a patient or other person to risk of harm;

19 4. Is intemperate in the use of alcohol or drugs, which use the
20 Board determines endangers or could endanger patients;

21 5. Exhibits through a pattern of practice or other behavior
22 actual or potential inability to practice nursing with sufficient
23 knowledge or reasonable skills and safety due to impairment caused
24 by illness, use of alcohol, drugs, chemicals or any other substance,

1 or as a result of any mental or physical condition, including
2 deterioration through the aging process or loss of motor skills,
3 mental illness, or disability that results in inability to practice
4 with reasonable judgment, skill or safety; provided, however, the
5 provisions of this paragraph shall not be utilized in a manner that
6 conflicts with the provisions of the Americans with Disabilities
7 Act;

8 6. Has been adjudicated as mentally incompetent, mentally ill,
9 chemically dependent or dangerous to the public or has been
10 committed by a court of competent jurisdiction, within or without
11 this state;

12 7. Is guilty of unprofessional conduct as defined in the rules
13 of the Board;

14 8. Is guilty of any act that jeopardizes a patient's life,
15 health or safety as defined in the rules of the Board;

16 9. Violated a rule promulgated by the Board, an order of the
17 Board, or a state or federal law relating to the practice of
18 registered, practical or advanced practice registered nursing or
19 advanced unlicensed assisting, or a state or federal narcotics or
20 controlled dangerous substance law including, but not limited to
21 prescribing, dispensing or administering opioid drugs in excess of
22 the maximum limits authorized in Section 2-309I of Title 63 of the
23 Oklahoma Statutes;

1 10. Has had disciplinary actions taken against the individual's
2 registered or practical nursing license, advanced unlicensed
3 assistive certification, or any professional or occupational
4 license, registration or certification in this or any state,
5 territory or country;

6 11. Has defaulted or been terminated from the peer assistance
7 program for any reason;

8 12. Fails to maintain professional boundaries with patients, as
9 defined in the Board rules;

10 13. Engages in sexual misconduct, as defined in Board rules,
11 with a current or former patient or key party, inside or outside the
12 health care setting; or

13 14. Has knowingly ~~provided~~ performed, attempted to perform, or
14 referred a child for a gender transition ~~procedures~~ procedure as
15 defined in Section ~~4~~ 2607.1 of ~~this act~~ Title 63 of the Oklahoma
16 Statutes to a child.

17 C. Any person who supplies the Board information in good faith
18 shall not be liable in any way for damages with respect to giving
19 such information.

20 D. The Board may cause to be investigated all reported
21 violations of the Oklahoma Nursing Practice Act. Information
22 obtained during an investigation into possible violations of the
23 Oklahoma Nursing Practice Act shall be kept confidential, but may be
24 introduced by the state in administrative proceedings before the

1 Board, whereupon the information admitted becomes a public record.
2 Public records maintained by the agency are administrative records,
3 not public civil or criminal records.

4 Confidential investigative records shall not be subject to
5 discovery or subpoena in any civil or criminal proceeding, except
6 that the Board may give such information to law enforcement and
7 other state agencies as necessary and appropriate in the discharge
8 of the duties of that agency and only under circumstances that
9 ensure against unauthorized access to the information.

10 E. The Board may authorize the Executive Director to issue a
11 confidential letter of concern to a licensee when evidence does not
12 warrant formal proceedings, but the Executive Director has noted
13 indications of possible errant conduct that could lead to serious
14 consequences and formal action.

15 F. All individual proceedings before the Board shall be
16 conducted in accordance with the Administrative Procedures Act.

17 G. At a hearing the accused shall have the right to appear
18 either personally or by counsel, or both, to produce witnesses and
19 evidence on behalf of the accused, to cross-examine witnesses and to
20 have subpoenas issued by the designated Board staff. If the accused
21 is found guilty of the charges the Board may refuse to issue a
22 renewal of license to the applicant, revoke or suspend a license, or
23 otherwise discipline a licensee.

24

1 H. A person whose license is revoked may not apply for
2 reinstatement during the time period set by the Board. The Board on
3 its own motion may at any time reconsider its action.

4 I. Any person whose license is revoked or who applies for
5 renewal of registration and who is rejected by the Board shall have
6 the right to appeal from such action pursuant to the Administrative
7 Procedures Act.

8 J. 1. Any person who has been determined by the Board to have
9 violated any provisions of the Oklahoma Nursing Practice Act or any
10 rule or order issued pursuant thereto shall be liable for an
11 administrative penalty not to exceed Five Hundred Dollars (\$500.00)
12 for each count for which any holder of a certificate or license has
13 been determined to be in violation of the Oklahoma Nursing Practice
14 Act or any rule promulgated or order issued pursuant thereto.

15 2. The amount of the penalty shall be assessed by the Board
16 pursuant to the provisions of this section, after notice and an
17 opportunity for hearing is given to the accused. In determining the
18 amount of the penalty, the Board shall include, but not be limited
19 to, consideration of the nature, circumstances, and gravity of the
20 violation and, with respect to the person found to have committed
21 the violation, the degree of culpability, the effect on ability of
22 the person to continue to practice, and any show of good faith in
23 attempting to achieve compliance with the provisions of the Oklahoma
24 Nursing Practice Act.

1 K. The Board shall retain jurisdiction over any person issued a
2 license, certificate or temporary license pursuant to the Oklahoma
3 Nursing Practice Act, regardless of whether the license, certificate
4 or temporary license has expired, lapsed or been relinquished during
5 or after the alleged occurrence or conduct prescribed by the
6 Oklahoma Nursing Practice Act.

7 L. In the event disciplinary action is imposed, any person so
8 disciplined shall be responsible for any and all costs associated
9 with satisfaction of the discipline imposed.

10 M. In the event disciplinary action is imposed in an
11 administrative proceeding, the Board shall have the authority to
12 recover the monies expended by the Board in pursuing any
13 disciplinary action, including but not limited to costs of
14 investigation, probation or monitoring fees, administrative costs,
15 witness fees, attorney fees and court costs. This authority shall
16 be in addition to the Board's authority to impose discipline as set
17 out in subsection A of this section.

18 N. The Executive Director shall immediately suspend the license
19 of any person upon proof that the person has been sentenced to a
20 period of continuous incarceration serving a penal sentence for
21 commission of a misdemeanor or felony. The suspension shall remain
22 in effect until the Board acts upon the licensee's written
23 application for reinstatement of the license.

1 O. When a majority of the officers of the Board, which
2 constitutes the President, Vice President and Secretary/Treasurer,
3 find that preservation of the public health, safety or welfare
4 requires immediate action, summary suspension of licensure or
5 certification may be ordered before the filing of a sworn complaint
6 or at any other time before the outcome of an individual proceeding.
7 The summary suspension of licensure or certification may be ordered
8 without compliance with the requirements of the Oklahoma Open
9 Meeting Act. Within seven (7) days after the summary suspension,
10 the licensee shall be notified by letter that summary suspension has
11 occurred. The summary suspension letter shall include notice of the
12 date of the proposed hearing to be held in accordance with Section
13 485:10-11-2 of the Oklahoma Administrative Code and the
14 Administrative Procedures Act, within ninety (90) days of the date
15 of the summary suspension letter, and shall be signed by one of the
16 Board officers.

17 P. In any proceeding in which the Board is required to serve an
18 order on an individual, the Board may send such material to the
19 individual's address of record with the Board. If the order is
20 returned with a notation by the United States Postal Service
21 indicating that it is undeliverable for any reason, and the records
22 of the Board indicate that the Board has not received any change of
23 address since the order was sent, as required by the rules of the
24 Board, the order and any subsequent material relating to the same

1 matter sent to the most recent address on file with the Board shall
2 be deemed by the court as having been legally served for all
3 purposes.

4 SECTION 7. AMENDATORY 59 O.S. 2021, Section 637, as
5 amended by Section 14, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025,
6 Section 637), is amended to read as follows:

7 Section 637. A. The State Board of Osteopathic Examiners may
8 institute disciplinary action, enforce sanctions, or refuse to admit
9 a person to an examination or may refuse to issue or reinstate or
10 may suspend or revoke any license issued or reinstated by the Board
11 upon proof that the applicant or holder of such a license:

12 1. Has obtained a license, license renewal or authorization to
13 sit for an examination, as the case may be, through fraud,
14 deception, misrepresentation or bribery; or has been granted a
15 license, license renewal or authorization to sit for an examination
16 based upon a material mistake of fact;

17 2. Has engaged in the use or employment of dishonesty, fraud,
18 misrepresentation, false promise, false pretense, unethical conduct
19 or unprofessional conduct, as may be determined by the Board, in the
20 performance of the functions or duties of an osteopathic physician
21 including, but not limited to, the following:

22 a. obtaining or attempting to obtain any fee, charge,
23 tuition or other compensation by fraud, deception or
24 misrepresentation; willfully and continually

- 1 overcharging or overtreating patients; or charging for
2 visits to the physician's office which did not occur
3 or for services which were not rendered,
- 4 b. using intimidation, coercion or deception to obtain or
5 retain a patient or discourage the use of a second
6 opinion or consultation,
- 7 c. willfully performing inappropriate or unnecessary
8 treatment, diagnostic tests or osteopathic medical or
9 surgical services,
- 10 d. delegating professional responsibilities to a person
11 who is not qualified by training, skill, competency,
12 age, experience or licensure to perform them, noting
13 that delegation may only occur within an appropriate
14 physician-patient relationship, wherein a proper
15 patient record is maintained including, but not
16 limited to, at the minimum, a current history and
17 physical,
- 18 e. misrepresenting that any disease, ailment, or
19 infirmity can be cured by a method, procedure,
20 treatment, medicine or device,
- 21 f. acting in a manner which results in final disciplinary
22 action by any professional society or association or
23 hospital or medical staff of such hospital in this or
24 any other state, whether agreed to voluntarily or not,

1 if the action was in any way related to professional
2 conduct, professional competence, malpractice or any
3 other violation of the Oklahoma Osteopathic Medicine
4 Act,

5 g. signing a blank prescription form; or dispensing,
6 prescribing, administering or otherwise distributing
7 any drug, controlled substance or other treatment
8 without sufficient examination or the establishment of
9 a physician-patient relationship, or for other than
10 medically accepted therapeutic or experimental or
11 investigational purpose duly authorized by a state or
12 federal agency, or not in good faith to relieve pain
13 and suffering, or not to treat an ailment, physical
14 infirmity or disease, or violating any state or
15 federal law on controlled dangerous substances
16 including, but not limited to, prescribing, dispensing
17 or administering opioid drugs in excess of the maximum
18 limits authorized in Section 2-309I of Title 63 of the
19 Oklahoma Statutes,

20 h. engaging in any sexual activity within a physician-
21 patient relationship,

22 i. terminating the care of a patient without adequate
23 notice or without making other arrangements for the
24 continued care of the patient,

1 j. failing to furnish a copy of a patient's medical
2 records upon a proper request from the patient or
3 legal agent of the patient or another physician; or
4 failing to comply with any other law relating to
5 medical records,

6 k. failing to comply with any subpoena issued by the
7 Board,

8 l. violating a probation agreement with or order from
9 this Board or any other agency, and

10 m. failing to keep complete and accurate records of
11 purchase and disposal of controlled drugs or narcotic
12 drugs;

13 3. Has engaged in gross negligence, gross malpractice or gross
14 incompetence;

15 4. Has engaged in repeated acts of negligence, malpractice or
16 incompetence;

17 5. Has been finally adjudicated and found guilty, or entered a
18 plea of guilty or nolo contendere in a criminal prosecution, for any
19 offense reasonably related to the qualifications, functions or
20 duties of an osteopathic physician, whether or not a sentence is
21 imposed, and regardless of the pendency of an appeal;

22 6. Has had the authority to engage in the activities regulated
23 by the Board revoked, suspended, restricted, modified or limited, or
24 has been reprimanded, warned or censured, probated or otherwise

1 disciplined by any other state or federal agency whether or not
2 voluntarily agreed to by the physician including, but not limited
3 to, the denial of licensure, surrender of the license, permit or
4 authority, allowing the license, permit or authority to expire or
5 lapse, or discontinuing or limiting the practice of osteopathic
6 medicine pending disposition of a complaint or completion of an
7 investigation;

8 7. Has violated or failed to comply with provisions of any act
9 or regulation administered by the Board;

10 8. Is incapable, for medical or psychiatric or any other good
11 cause, of discharging the functions of an osteopathic physician in a
12 manner consistent with the public's health, safety and welfare;

13 9. Has been guilty of advertising by means of knowingly false
14 or deceptive statements;

15 10. Has been guilty of advertising, practicing, or attempting
16 to practice under a name other than one's own;

17 11. Has violated or refused to comply with a lawful order of
18 the Board;

19 12. Has been guilty of habitual drunkenness, or habitual
20 addiction to the use of morphine, cocaine or other habit-forming
21 drugs;

22 13. Has been guilty of personal offensive behavior, which would
23 include, but not be limited to, obscenity, lewdness, and
24 molestation;

1 14. Has performed an abortion as defined by Section 1-730 of
2 Title 63 of the Oklahoma Statutes, except for an abortion necessary
3 to prevent the death of the mother or to prevent substantial or
4 irreversible physical impairment of the mother that substantially
5 increases the risk of death. The performance of an abortion on the
6 basis of the mental or emotional health of the mother shall be a
7 violation of this paragraph, notwithstanding a claim or diagnosis
8 that the woman may engage in conduct which she intends to result in
9 her death. The Board shall impose a penalty as provided in this
10 section and in Section 637.1 of this title on a licensee who
11 violates this paragraph. The penalty shall include, but not be
12 limited to, suspension of the license for a period not less than one
13 (1) year;

14 15. Has been adjudicated to be insane, or incompetent, or
15 admitted to an institution for the treatment of psychiatric
16 disorders;

17 16. Has knowingly ~~provided~~ performed, attempted to perform, or
18 referred a child for a gender transition ~~procedures~~ procedure as
19 defined in Section 2607.1 of Title 63 of the Oklahoma Statutes to a
20 child;

21 17. Has violated any of the provisions of the Oklahoma Pharmacy
22 Act, which shall be punishable by appropriate actions established in
23 rules promulgated by the Board; or
24

1 18. Has breached the American Osteopathic Association Code of
2 Ethics or the Osteopathic Oath.

3 B. The Board may enter an order denying licensure or imposing
4 any of the penalties as prescribed by rule against any applicant for
5 licensure or licensee who is found guilty of violating any provision
6 of subsection A of this section. In determining what action is
7 appropriate, the Board shall first consider what sanctions are
8 necessary to protect the public or to compensate the patient. Only
9 after those sanctions have been imposed may the Board consider and
10 include in the order requirements designed to rehabilitate the
11 physician. All costs associated with compliance with orders issued
12 under this subsection shall be the obligation of the physician.

13 C. In any administrative action against a physician that does
14 not involve revocation or suspension of a license, the Board shall
15 have the burden, by the greater weight of the evidence, to establish
16 the existence of grounds for disciplinary action. The Board shall
17 establish grounds for revocation or suspension of a license by clear
18 and convincing evidence.

19 D. The Board shall not reinstate the license or certificate of
20 an osteopathic physician, or cause a license or certificate to be
21 issued to a person it has deemed unqualified, until such time as it
22 is satisfied that he or she has complied with all the terms and
23 conditions set forth in the final order and that such person is
24 capable of safely engaging in the practice of osteopathic medicine.

1 However, the Board shall not issue a license to, or reinstate the
2 license of, any osteopathic physician found by the Board to have
3 committed repeated medical malpractice, regardless of the extent to
4 which the licensee or prospective licensee has complied with all
5 terms and conditions set forth in the final order or is capable of
6 safely engaging in the practice of osteopathic medicine.

7 E. The State Board of Osteopathic Examiners shall neither
8 refuse to renew, nor suspend, nor revoke any license, however, for
9 any of these causes, unless the person accused has been given at
10 least twenty (20) days' notice in writing of the charge against him
11 or her and a public hearing by the Board; provided, three-fourths
12 (3/4) of a quorum present at a meeting may vote to suspend a license
13 in an emergency situation if the licensee affected is provided a
14 public hearing within thirty (30) days of the emergency suspension.

15 F. The State Board of Osteopathic Examiners shall have the
16 power to order or subpoena the attendance of witnesses, the
17 inspection of records and premises and the production of relevant
18 books and papers for the investigation of matters that may come
19 before it. The presiding officer of the Board or his or her
20 designee shall have the authority to compel the giving of testimony
21 as is conferred on courts of justice.

22 G. Any osteopathic physician in this state whose license to
23 practice osteopathic medicine is revoked or suspended under this
24

1 section shall have the right to seek judicial review of a ruling of
2 the Board pursuant to the Administrative Procedures Act.

3 H. The Board may enact rules necessary or appropriate to the
4 performance, enforcement, or carrying out of any of the purposes,
5 objectives, or provisions of this section.

6 SECTION 8. AMENDATORY Section 1, Chapter 150, O.S.L.
7 2023 (63 O.S. Supp. 2025, Section 2607.1), is amended to read as
8 follows:

9 Section 2607.1. A. As used in this section:

10 1. "Child" or minor means any person under eighteen (18) years
11 of age;

12 2. a. "Gender transition procedures" means the following
13 medical or surgical services performed for the purpose
14 of attempting to affirm the minor's perception of his
15 or her gender or biological sex, if that perception is
16 inconsistent with the minor's biological sex:

17 (1) surgical procedures that alter or remove physical
18 or anatomical characteristics or features that
19 are typical for the individual's biological sex,
20 including, but not limited to, genital or chest
21 surgeries, or

22 (2) puberty-blocking drugs, cross-sex hormones, or
23 other drugs to suppress or delay normal puberty
24 or to promote the development of feminizing or

1 masculinizing features consistent with the
2 opposite biological sex.

3 b. Gender transition procedures do not include:

- 4 (1) behavioral health care services or mental health
5 counseling,
6 (2) medications to treat depression and anxiety,
7 (3) medications prescribed, dispensed, or
8 administered specifically for the purpose of
9 treating precocious puberty or delayed puberty in
10 that patient,
11 (4) services provided to individuals born with
12 ambiguous genitalia, incomplete genitalia, or
13 both male and female anatomy, or biochemically
14 verifiable disorder of sex development (DSD),
15 including but not limited to:
16 (a) 46,XX DSD,
17 (b) 46,XY DSD,
18 (c) sex chromosomes DSDs,
19 (d) XX or XY sex reversal, and
20 (e) ovotesticular disorder,
21 (5) the treatment of any infection, injury, disease,
22 or disorder that has been caused by or
23 exacerbated by the performance of gender
24 transition procedures, whether or not the gender

1 transition procedure was performed in accordance
2 with state and federal law,

3 (6) the treatment of any physical injury or illness
4 that would, as certified by a physician, place
5 the individual in imminent danger of death or
6 impairment of a major bodily function unless such
7 treatment is performed, or

8 (7) the provision of puberty-blocking drugs or cross-
9 sex hormones to a minor currently receiving such
10 drugs or hormones as of the effective date of
11 this act for a period of not more than six (6)
12 months solely for the purpose of assisting the
13 minor with gradually decreasing and discontinuing
14 use of the drugs or hormones~~;~~;

15 3. "Health care provider" means a physician, physician
16 assistant, Advanced Practice Registered Nurse, or any other person
17 who is licensed, certified, or otherwise authorized by the laws of
18 this state to administer health care in the ordinary course of the
19 practice of his or her profession; and

20 4. "State funds" includes funds appropriated by the Legislature
21 or derived from any Oklahoma government agency or political
22 subdivision.
23
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1 B. A health care provider shall not knowingly ~~provide~~ perform,
2 attempt to perform, or refer a child for a gender transition
3 procedures to any child procedure.

4 C. No person shall knowingly aid or abet the performance or
5 referral of a gender transition procedure on a child, whether in-
6 state or out-of-state.

7 ~~E.~~ D. A health care provider found in violation of subsection B
8 of this section shall, upon an adverse ruling by the provider's
9 respective licensing board, be guilty of unprofessional conduct.
10 Disciplinary proceedings against the health care provider may be
11 commenced at any time after the commission of such offense.

12 ~~D.~~ E. A health care provider who violates subsection B of this
13 section shall, upon conviction, be guilty of a felony. Prosecution
14 for a criminal violation of subsection B of this section shall be
15 commenced not later than the date on which the child attains the age
16 of forty-five (45) years.

17 ~~E.~~ F. 1. The parent, legal guardian, or next friend of a child
18 to whom a health care provider has provided one or more gender
19 transition procedures in violation of subsection B of this section
20 may bring a civil action against the health care provider. The
21 parent, legal guardian, or next friend shall bring a claim for the
22 violation no later than the date on which the child attains the age
23 of majority.

1 2. A child to whom a health care provider has provided one or
2 more gender transition procedures may bring an action throughout his
3 or her minority through a parent, legal guardian, or next friend,
4 and may bring an action in his or her own name upon reaching
5 majority at any time until the date on which the child attains the
6 age of forty-five (45) years.

7 3. The court in such action may award compensatory damages,
8 punitive damages, injunctive relief, or any other appropriate
9 relief. Additionally, the court shall award court costs and
10 reasonable attorney fees to a prevailing party who establishes a
11 violation of this section.

12 4. Notwithstanding any other provision of law, an action under
13 this subsection may be commenced, and relief may be granted, in a
14 judicial proceeding without regard to whether the person commencing
15 the action has sought or exhausted available administrative
16 remedies.

17 ~~F.~~ G. The Attorney General may bring an action to enforce
18 compliance with this act. Nothing in this act shall be construed to
19 deny, impair, or otherwise affect any right or authority of the
20 Attorney General, the state, or an agency, officer, or employee of
21 the state to institute or intervene in any action or proceeding.

22 SECTION 9. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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